

25STCV34599 25STCV34599

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-21
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C07%2F21%2F2026
Source SHA-256: 28d5547d2accc990016b47a0f77673cb0c3048e7ae fee952e63f2ef2bd25fa64

Case Number: 25STCV34599 Hearing Date: July 21, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ELENA GOMEZ,

Plaintiff,

vs.

UNIVERSAL PROTECTION SERVICES, LP, et al.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 25STCV34599

[TENTATIVE] ORDER GRANTING MOTIONS TO COMPEL
INITIAL RESPONSES TO DISCOVERY AND REQUEST FOR SANCTIONS

Dept. 506

8:30 a.m.

July 21, 2026

On

November 26, 2025, Plaintiff Elena Gomez filed this employment action against Defendants Universal Protection Services, LP, Allied Universal Security Services, and Does 1 through 30, asserting causes of action for Labor Code violations, Unfair Competition Law violations, and retaliation.

Defendant

Universal Protection Services, LP now moves for an order compelling Plaintiff to serve initial responses, without objections, to Defendant's Form Interrogatories – General (Set One), Form Interrogatories – Employment (Set One), Request for Production of Documents (Set One), Special Interrogatories (Set One), and Request for Admissions, Set One.

LEGAL STANDARD

A

party has 30 days after service of interrogatories, requests for production, and request for admissions to serve responses unless the deadline has been extended by the court or parties. (Code

Civ. Proc., §§ 2031.260, subd. (a); 2030.260, subd. (a); 2033.250, subd. (a).)

If

a responding party fails to serve timely responses to interrogatories, requests for admission, and demands for inspection, (1) the responding party waives all objections to the discovery (unless the court relieves the party from the waiver) and (2) the propounding party may move for an order compelling initial responses to the interrogatories and demands, and to deem the truth of the matters specified in the requests for admission admitted. (Code Civ. Proc., §§ 2030.290, subds. (a), (b) [interrogatories]; 2033.280, subds. (a), (b) [requests for admissions]; 2031.300, subds. (a), (b) [demands for inspection].) Motions to compel initial responses are not subject to meet and confer requirements or filing deadlines.

A

court is required to impose monetary sanctions against any party, person, or attorney who unsuccessfully makes or opposes motions to compel initial responses to interrogatories and demands unless the one subject to the sanction acted with substantial justification or other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.290, subd. (c) and 2031.300, subd. (c).) For requests for admissions: "It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280, subd. (c).)

DISCUSSION

On

February 13, 2026, Defendant served the discovery requests on Plaintiff, but Plaintiff has never served responses despite being granted extensions to do so.

(Declarations of Alexander P. Castillo in Support of Motions, ¶¶ 3-16.) All

five motions now seek orders compelling Plaintiff to serve initial responses without objections to the discovery requests; the Court notes that Defendant has not asked the Court to deem its Requests for Admissions (Set One) admitted. The motions also seek monetary sanctions against Plaintiff and her counsel.

Plaintiff's

counsel has filed a declaration in opposition to Defendant's request for sanctions, asking the Court not to impose sanctions on him because he repeatedly asked Plaintiff to serve responses to the discovery requests, but she

refused. (Opposition, Declaration of Edward Antonino, ¶¶ 3, 4, 6.)

Given those undisputed facts, Defendant's request to compel Plaintiff's initial responses, without objections, to the discovery is GRANTED.

The Court also finds it proper to impose sanctions against Plaintiff for necessitating the motions.

Defendants seek sanctions of \$5,285 for the requests for admissions motion, \$1,358 for the special interrogatories motion, \$2,480 for the request for \$2,774 for the employment form motion, and \$2,125 for the general form interrogatories motion. The sanctions include filing fees and are based on defense counsel's billing rate of \$295 per hour.

The Court finds the requested sanctions excessive because these were routine discovery motions. Instead, the Court shall impose against Plaintiff sanctions of \$945 per motion. That amount consists of 3.0 hours of defense counsel's time at \$295 per hour (equals \$885) plus \$60 filing fees.

Therefore, the request for sanctions against Plaintiff is GRANTED in the total amount of \$4,725 for the five motions.

CONCLUSION

The motions are GRANTED. Plaintiff is ordered to serve initial responses, without objections, to Defendant's Form Interrogatories – General (Set One), Form Interrogatories – Employment (Set One), Request for Production of Documents (Set One), Special Interrogatories (Set One), and Request for Admissions, Set One, within 30 days of this ruling. Plaintiff is further ordered to pay Defendant total sanctions of \$4,725 within 30 days of this ruling.

Moving party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 21st day of July
2026

Hon. Thomas D. Long

Judge of the Superior
Court